

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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CHAM WHANG,

Plaintiff,

-against-

POLICE OFFICER JOSEPH KNIGHT, TAX No. 950692
and CAPTAIN TOMMY NG, Tax No. 919478,**SUMMONS**

Index No.:

The Basis of Venue is:
Location of Incident

Defendants.

Plaintiff designates Queens
County as the place of trial.

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To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

DATED: New York, New York
April 18, 2017

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: POLICE OFFICER JOSEPH KNIGHT, TAX # 950692, 109th Precinct, 37-05 Union St,
Flushing, NY 11354
CAPTAIN TOMMY NG, 109th Precinct, Tax # 919478, 109th Precinct, 37-05 Union St,
Flushing, NY 11354

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POLICE OFFICER JOSEPH KNIGHT, TAX No. 950692
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Defendants.

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INDEX NO.:**VERIFIED COMPLAINT****JURY TRIAL DEMANDED**

Plaintiff CHAM WHANG, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. On April 18, 2014, at approximately 4:00 p.m., plaintiff was lawfully inside of his apartment located at 31-11 Linden Place, Apt. 4A, Flushing, New York 11355 when the individually named New York City police officer defendants unlawfully entered his apartment, falsely arrested, falsely imprisoned, unlawfully searched and unlawfully seized plaintiff. Thereafter, the officers violated plaintiff's Fifth Amendment right to due process and denied plaintiff a right to a fair trial by making false, misleading, and incomplete statements to the Queens County District Attorney's Office regarding the basis for their arrest of plaintiff. Those officers that did not physically seize plaintiff are liable for failing to intervene to stop the unlawful and unconstitutional conduct by their fellow officers toward plaintiff. Additionally, as a result of the unlawful prosecution against plaintiff, he was forced to move out of his apartment within 24 hours after he was arrested and suffered physical injuries as a result of being forced to move his apartment with such short notice. The false charges were dismissed against plaintiff on October 17, 2014. Plaintiff was deprived of his constitutional and common law rights when the individual defendants falsely arrested, falsely imprisoned, unlawfully searched and denied plaintiff the right to due process and a fair trial, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, New York State common law, and the laws of the State of New York.

PARTIES

2. Plaintiff CHAM WHANG was a resident of the state of New York on April 18, 2014.

3. POLICE OFFICER JOSEPH KNIGHT, TAX # 950692, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER JOSEPH KNIGHT, TAX # 950692, is and was at all times relevant herein, assigned to the 109th Precinct.

5. POLICE OFFICER JOSEPH KNIGHT, TAX # 950692 is being sued in his individual and official capacity.

6. CAPTAIN TOMMY NG, Tax #919478 is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. CAPTAIN TOMMY NG, Tax #919478 is and was at all times relevant herein, assigned to the 109th Precinct.

8. CAPTAIN TOMMY NG, Tax #919478 is being sued in his individual and official capacity.

9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

11. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

12. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

13. Plaintiff, Cham Whang lawfully resided at 31-11 Linden Place, Apt. 4A, Flushing, NY 11355 from November 1, 2012 through April 18, 2014.

14. At no time between said dates did plaintiff's landlord obtain a Court Order evicting plaintiff from his apartment.

15. On April 18, 2014 at approximately 4:00 p.m the individually named defendant police officers, who were all assigned to the 109th Precinct, entered plaintiff's apartment without the consent of plaintiff, outside the presence of a city marshal/sheriff, and without a warrant, court order, or any legal justification to enter the apartment.

16. Plaintiff was lawfully present inside of his apartment when the defendant police officers unlawfully entered and the defendant police officers pointed their guns at plaintiff, which caused plaintiff to fear for his safety and his life.

17. The defendant police officers then proceeded to unlawfully handcuff plaintiff, unlawfully search plaintiff and his apartment, unlawfully seize plaintiff's apartment, falsely imprison plaintiff, falsely arrest plaintiff, and unlawfully seize plaintiff, without probable cause or any legal justification to do so.

18. At no time were the defendant police officers provided with a Court Order indicating that plaintiff had been evicted from his apartment, nor did the officers have any objective reason to believe plaintiff was unlawfully in the apartment.

19. In fact, plaintiff showed the defendant police officers documentation indicating that he was the lawful leaseholder of the apartment, and was lawfully allowed to be in the apartment.

20. Nevertheless, the NYPD officers falsely arrested plaintiff against his will and transported him to the 109th Precinct.

21. The individually named defendant police officer violated Administrative Code Section 26-521, "Unlawful Evictions," when they entered and seized plaintiff's apartment and falsely arrested plaintiff.

22. Plaintiff was transported to the 109th Precinct by defendants whereat plaintiff was unlawfully searched, unlawfully fingerprinted and falsely imprisoned in a holding cell for several hours.

23. The individually named defendant police officers provided the Queens County District Attorney's Office with false, misleading, and incomplete information about their basis for arresting plaintiff, causing a prosecution to be initiated against plaintiff without probable cause or any legal justification.

24. Eventually, defendants transported plaintiff to Queens Central Booking where he was unlawfully detained overnight in a holding cell in crowded and unsanitary conditions, with individuals who were accused of committing serious violent crimes.

25. On or about April 19, 2014 at approximately 11:00 a.m., plaintiff appeared before a judge at arraignment whereat based upon the officers false allegations he was unlawfully charged with Criminal Trespass in the Third Degree (PL 140.10-A, and was released from custody.

26. Thereafter, plaintiff was required to move out of his apartment and find somewhere else to live within 24 hours after he was released from custody at arraignment because of the arrest and unlawful prosecution initiated against plaintiff by defendants.

27. Plaintiff injured himself while he was trying to move his belongings out of the apartment on such short notice.

28. The individually named defendant officers lacked any basis to order plaintiff to leave his apartment because plaintiff had not committed any crime, nor did the officers have reason to believe he committed a crime or to arrest him.

29. Thereafter, all charges against plaintiff were dismissed on in their entirety on October 17, 2014.

30. Some of the individually named police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search of plaintiff, false arrest, false imprisonment, denial of plaintiff's due process rights and denial plaintiff's right to a fair trial and took no action to prevent and/or stop the constitutional violations from continuing.

31. The unlawful entry and taking of plaintiff's apartment, search, false arrest, false imprisonment, and denial of due process and right to a fair trial, denial of a fair trial of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

32. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 31 with the same force and effect as if more fully set forth at length herein.

33. The individually named police officer defendants while acting in concert and within the scope of their authority, unlawfully entered plaintiff's apartment, unlawfully seized plaintiff's property, including his apartment, unlawfully searched plaintiff, falsely arrested, and

falsely imprisoned plaintiff, subjected plaintiff to a denial of his due process rights and a denial of his right to a fair trial, all without probable cause and in violation of plaintiff's right to be free from an unreasonable seizure, the unlawful taking of his property, unlawful entry into his apartment and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

34. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

35. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

36. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 35 with the same force and effect as if more fully set forth at length herein.

37. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

38. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

39. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

40. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment Rights and Denial of His

Right to Due Process and Right to a Fair Trial

41. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 40 with the same force and effect as if fully set forth herein.

42. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Queens County District Attorney's Office.

43. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Queens County District Attorney's Office.

44. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Queens County District Attorney's Office.

45. In withholding/creating false evidence against plaintiff Cham Whang and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments to the United States Constitution.

46. As a result of the foregoing, plaintiff Cham Wang, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, was forced to move from his apartment on short notice and injured himself during the rushed move, and suffered a deprivation of his constitutional rights.

47. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

48. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Failure to Intervene

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

51. Defendants failed to intervene to prevent the unlawful conduct described herein.

52. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

53. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

54. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FIFTH CAUSE OF ACTION

Unlawful Search of Apartment

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. The unlawful entry and search of plaintiff's apartment constitutes an unlawful seizure of plaintiff's property and of plaintiff during the course of the search, through means intentionally applied.

57. Defendants lacked probable cause, consent, a lawfully obtained search warrant, or exigent circumstances to search plaintiff's apartment.

58. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the United State Constitution.

59. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

60. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

JURY DEMAND

61. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Cham Whang demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
April 18, 2017

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: POLICE OFFICER JOSEPH KNIGHT, TAX # 950692, 109th Precinct, 37-05 Union St,
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ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
April 18, 2017

/s/
STUART E. JACOBS